JCE Infrastructure Pty Ltd

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Request for Quotation: EPA Victoria appointed environmental auditor

Mildura Landfill capping design, environmental audit (Stages 1 and 2)

RFQ no.	JCE-RFQ-VP527758-EA (Rev C, final)
Date	12/10/2026
To	Anthony Kortegast, Tonkin & Taylor Pty Ltd
From	Jayden Callen, Director, JCE Infrastructure Pty Ltd
Project	Mildura Rural City Council Tender 2027/336, Environmental Audit Services - Mildura Landfill Capping Design (VendorPanel VP527758)
Quotation due	12:00 pm (AEDT) Friday 16/10/2026
Tender closes	2:00 pm (AEDT) Thursday 22/10/2026

1. Purpose of this request

JCE Infrastructure Pty Ltd (JCE) is a civil and hydraulic engineering consultancy in northern NSW. JCE is considering a tender to Mildura Rural City Council (Council) for the environmental audit of the Mildura Landfill capping design. Council is appointing an EPA Victoria appointed environmental auditor, who becomes the auditor of record with EPA for Stages 1 and 2.

JCE invites you to quote, as that auditor, for the services in section 4 as a named subconsultant to JCE. JCE would manage the contract and support you on surface water, drainage, landform and constructability. If you would prefer to tender to Council directly, JCE would support your bid as your civil and hydraulic subconsultant instead. Please say which structure you prefer.

2. Project and tender background

Council's separate Design Consultant is preparing the capping and rehabilitation design for Mildura Landfill, 15 Scherger Drive, Mildura (EPA operating licence OL000019951; A05a landfill and A01 reportable priority waste management). The site is an unlined single cell landfill in use since at least 1972, with no leachate collection or gas extraction. Under Council's Waste Services Strategy 2026-2036 the site moves to a transfer station only operation, with landfilling planned to cease from the 2028/29 financial year.

The audit is under section 208 of the Environment Protection Act 2017 and EPA Publication 2041.1. Each package is assessed against the Landfill BPEM (EPA Publication 788.3), EPA Publication 1323, the licence conditions and the EP Act 2017. Stage 3 (construction phase oversight and the Statement of Environmental Audit) is excluded and will be procured separately by Council.

Date	Detail
Site inspection (Council)	11:00 am Tuesday 13/10/2026 at the landfill per Specification s14 (VendorPanel summary says 22/10/2026; JCE is asking Council to confirm). Recommended, not mandatory
Questions to JCE	12:00 pm (AEDT) Wednesday 14/10/2026
Discrepancies to Council	2:00 pm Thursday 15/10/2026 (7 days before close)
Quotation due to JCE	12:00 pm (AEDT) Friday 16/10/2026
Questions to Council close	2:00 pm Monday 19/10/2026, VendorPanel forum only
Tender closes	2:00 pm (AEDT) Thursday 22/10/2026
Council decision / award	05/11/2026 (expected) / December 2026
Practical completion	August 2027 (Annexure item 13: 31/08/2027; negotiable)

Council's evaluation criteria. Price 30%; Relevant Experience in Conducting EPA Environmental Audits for Licensed Sites 20%; Key Personnel and Qualifications 20%; Communication, Stakeholder Engagement and Independence Management 15%; Social and Sustainable Outcomes 10%; Local Purchasing 5%. Most of the non-price score rests on the auditor's appointment and audit record.

3. EPA appointment of the auditor

- The nominated auditor must hold a current appointment as an environmental auditor under the Environment Protection Act 2017 and be listed on EPA Victoria's public register of appointed environmental auditors, with an appointment that covers landfill design and closure (industrial facilities category, landfills subcategory).
- Please give the appointment details (category, subcategory and expiry) and confirm the appointment will remain current, or will be renewed, through August 2027.
- The auditor personally carries out the statutory functions: the section 209 notification, the Terms of Reference, the Form F1033 scope submission, every commentary and formal determination, and EPA liaison. These are not delegated to JCE.

4. Scope of services

The scope is Council's Specification section 4, Tables 1 and 2, and the Engagement Schedule (attached). Price it as Council's five Schedule 2 items:

- **Item 1, Audit Terms of Reference and written confirmation of adequacy of site characterisation:** EPA notification within 5 business days of contract execution under section 209 (portal365.epa.vic.gov.au) and written confirmation to Council; inception; site visit arranged by Council (active and inactive disposal areas, monitoring bores, stormwater infrastructure, access, transfer station); review of background records and the Design Consultant's Site Assessment Report and Closure Staging Strategy Report; the ToR covering every element of Table 1 (objectives and scope for each stage, applicable standards and regulatory pathway, roles, data gaps in hydrogeology, landfill gas, settlement and groundwater monitoring, elements of the environment and environmental values, schedule of activities); the written confirmation of adequacy; Form F1033 scope submission, incorporation of any EPA amendments (EPA has up to 30 business days), and written confirmation to Council of EPA endorsement.
- **Item 2, Regulatory Compliance Commentary on the Landfill Gas Assessment and Recommendations:** early checkpoint, written commentary on regulatory compliance only. No formal sign-off.
- **Item 3, Regulatory Compliance Commentary on the Pre-design Capping Option:** attend the Design Consultant's pre-design presentation and give written preliminary comments on regulatory compliance only. These do not bind the Stage Gate 1 review.
- **Item 4, Formal Determination of the Stage Gate 1 Package:** one formal review cycle of the concept-level package (Stage 1 Cap Design, Environmental Risk Assessment, CQA Framework outline, Landfill Gas Management, Surface Water, Drainage and Landform Design, Rehabilitation and Aftercare Management Plan, Environmental Monitoring Plan, and the Landscape Plan shown in the Engagement Schedule) against BPEM, the licence conditions and applicable standards, and a written determination (acceptance, conditional acceptance or refusal). Concept level only: no detailed design checking in Stage 1.
- **Item 5, Formal Determination of the Stage Gate 2 Package and tender support:** two formal review cycles of the detailed, tender-ready package, including whether the CQA Plan gives enough oversight to secure construction compliance; written determination before the construction tender is released; tender support information (number and nature of hold points under the accepted CQA Plan, minimum notice for each, auditor availability and program assumptions, inspection scheduling and reporting process); and reasonable cooperation with any incoming Stage 3 auditor.

JCE's role and specialist support. JCE manages the contract, program and review registers and gives you civil and hydraulic input on surface water, drainage, landform, earthworks and constructability. Your determinations

remain yours alone. Include in your price any landfill gas, hydrogeological, geotechnical or other specialist support you need, and tell JCE if your team can cover the geotechnical review (JCE is also seeking a separate geotechnical quote).

Outside this scope. Stage 3 construction oversight and the Statement of Environmental Audit; design or design certification; site investigations, sampling, monitoring and modelling; review cycles beyond those stated; EPA fees.

5. Deliverables

Deliverable	Format
Written confirmation of EPA notification (s209) and of EPA scope endorsement	PDF or email
Audit Terms of Reference; written confirmation of adequacy of site characterisation	PDF, signed by the auditor
Form F1033 proposed scope of environmental audit	EPA portal, copy to Council
Regulatory Compliance Commentaries (Items 2 and 3)	PDF
Audit comments in the review registers	Excel
Formal Determinations, Stage Gate 1 and Stage Gate 2	PDF, signed by the auditor
Tender support information	PDF

6. Program

Council expects to award in December 2026 and reach practical completion in August 2027. The work follows the Design Consultant's program, which Council has not yet published (RFI 4), and EPA's scope review of up to 30 business days. Please state your proposed review turnaround for each submission and any availability constraints between December 2026 and August 2027.

7. Information provided

Attached with this request: Council's Specification, Engagement Schedule, Mildura Landfill Background Information, Conditions of Tender, Conditions of Contract (AS 4122-2010) and Annexures, and Schedule 2 Pricing Information. Council's Waste Services Strategy 2026-2036 (15 MB) is available on request.

8. Insurance and contract terms

- **Professional indemnity:** not less than $5 million, maintained for 12 months after completion of the contract (Annexure Part A items 26 and 27).
- **Public liability:** not less than $10 million (Annexure item 25; Conditions of Tender 6.6).
- **Workers compensation:** as required by law (AS 4122 clause 30). The Form of Tender asks for WorkCover policy details, so please give insurer, policy number and expiry if you hold a policy.
- **Evidence:** certificates of currency for each policy with your quotation.

The head contract is AS 4122-2010 with Council's Annexures. The consultant's liability is capped at $10 million (Annexure item 24), and Annexure Part B item 3 adds an indemnity in Council's favour that includes indirect and consequential losses and legal costs on a full indemnity basis. Payment is within 30 business days of a claim, disbursements are included in the lump sum, copyright vests in Council (Alternative 2) and all contract documents are confidential. Please list any departures you would need. JCE has asked Council (RFI 6) whether the cap applies to the Part B indemnity.

9. Independence and conflict of interest

Council scores independence management (15%), and the Specification states that the Terms of Reference remain the auditor's document. With your quotation, please give a signed declaration that:

- states any past or current involvement of the auditor or your firm with Mildura Landfill (design, investigations, CQA, monitoring program verification, operational audits or other work for Council at the site);
- states any relationship with Council's Design Consultant, once Council names it;
- confirms no other conflict of interest, or financial interest in the site, under the EP Act 2017 and EPA's auditor guidelines; and
- confirms you will tell JCE promptly if a conflict arises during the tender or the contract.

JCE will make the same declaration for its own role.

10. Other requirements

- **Tender content (Schedule 6):** the auditor's name, appointment details, tertiary qualifications and memberships, a short professional summary, and at least two EPA environmental audits under the EP Act 2017 for licensed or formerly licensed sites (site, location, licence number, activity, your role as auditor or technical specialist, scope, outcome, start and end dates). Council scores these directly.
- **Communication:** a short note on how you would raise a potential non-compliance with Council and the Design Consultant before a formal determination while keeping your independence (Council criterion).
- **WHS:** your WHS policy and a risk assessment for the landfill site visit. Council's Prequalified Contractor requirements apply before any work on Council property.
- **Local and social outcomes:** anything you offer for Council's Local Purchasing and Social and Sustainable Outcomes criteria.

11. Pricing schedule

Please price each item as a fixed lump sum in Australian dollars, excluding GST, including all fees, disbursements, travel and the site visit (Specification s11). Council's milestones include 10% on execution and 5% on acceptance of the tender support information.

Item	Description	Lump sum (excl. GST)
1	Audit Terms of Reference and written confirmation of adequacy of site characterisation (incl. s209 notification, site visit, F1033 submission)	$
2	Regulatory Compliance Commentary on Landfill Gas Assessment and Recommendations	$
3	Regulatory Compliance Commentary on Pre-design Capping Option	$
4	Formal Determination of Stage Gate 1 Package (one formal review cycle)	$
5	Formal Determination of Stage Gate 2 Package (two formal review cycles) and tender support information	$
	Total, Items 1 to 5 (excl. GST)	**$**

Hourly rates for agreed variations (excl. GST)	Name	Rate ($/hr)
Environmental auditor		
Specialist support (landfill gas, hydrogeology, geotechnical)		
Other technical staff		

Please also state	Your response
Assumptions (including the number of meetings and review turnaround)	
Exclusions	
Preferred structure (subconsultant to JCE, or your own tender with JCE as subconsultant)	

Validity	90 days after Council's tender close, that is to 20/01/2027 (Council holds tender prices for 90 days after close)

12. Confidentiality

This request and the tender documents attached are confidential (Annexure item 22). Use them only to prepare your quotation and do not disclose them outside your firm without JCE's written consent. JCE will treat your quotation as confidential and will use it only in its tender to Council.

13. Basis of engagement

- Any engagement depends on Council awarding the contract to JCE and approving you as a subconsultant under AS 4122 clause 20.3. If JCE is not awarded the contract, there is no engagement.
- No fee is payable for preparing a quotation, and JCE is not obliged to accept any quotation.
- If JCE is awarded the contract, JCE will engage you on terms consistent with Council's conditions of contract, with prices fixed for the services described and hourly rates for agreed variations.

14. Submission

Please email your quotation to jayden@jceinfrastructure.com.au by 12:00 pm (AEDT) Friday 16/10/2026, with the subject "Quote JCE-RFQ-VP527758-EA: Mildura Landfill capping design audit". Questions are welcome by phone or email by 12:00 pm (AEDT) Wednesday 14/10/2026, so that JCE can put any that need Council's answer on the VendorPanel forum before it closes.

Thank you for considering this request.

Yours sincerely,

Jayden Callen, Director

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